

Senate File 554

S-3036

1 Amend Senate File 554 as follows:

2 1. By striking everything after the enacting clause and
3 inserting:

4 <Section 1. Section 232.2, subsection 12, paragraph c, Code
5 2025, is amended to read as follows:

6 c. (1) All rights and duties of a custodian shall be
7 subject to any residual rights and duties remaining in a parent
8 or guardian.

9 (2) Notwithstanding subparagraph (1), the department may
10 consent to routine medical care for a child that will allow the
11 child to engage in normal childhood experiences and participate
12 in activities in a manner similar to the child's peers.
13 "Routine medical care" includes but is not limited to all of the
14 following:

15 (a) Preventative care, also known as wellness care, not
16 including the administration of a vaccination.

17 (b) Nonemergency medical care including but not limited
18 to a physical examination, a diagnostic laboratory test, or a
19 medical visit for a minor illness.

20 (c) Use of necessary medication, including but not limited
21 to antibiotics.

22 Sec. 2. Section 232.2, subsection 12, Code 2025, is amended
23 by adding the following new paragraph:

24 NEW PARAGRAPH. d. If a court order entered under this
25 chapter transfers legal custody of a child to the department,
26 the department shall have the authority to delegate the
27 department's rights and duties as custodian of the child to a
28 licensee under chapter 237.

29 Sec. 3. Section 237.10, subsection 1, Code 2025, is amended
30 by adding the following new paragraph:

31 NEW PARAGRAPH. d. The department shall notify an individual
32 licensee if the department delegates the department's right
33 to consent to routine medical care on behalf of a child under
34 section 232.2, paragraph "c", to the individual licensee.>

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